

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MOHAMED G. AHMED,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY POLICE
DEPARTMENT DETECTIVE JAMES LUONGO,
NEW YORK CITY POLICE DEPARTMENT
SERGEANT AHMED AIMAN, NEW YORK CITY
POLICE DEPARTMENT OFFICERS "JOHN DOE"
AND "JANE DOE" #'S 1-10, first and last names
being fictitious and currently unknown,Defendants.
-----X**TO THE ABOVE-NAMED DEFENDANTS:**

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on counsel for the plaintiff, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service of this Summons is complete, if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Brooklyn, New York
March 9, 2016

Erik Ikhnlov, Esq.
IKHILOV & ASSOCIATES
Attorneys for Plaintiff
MOHAMED G. AHMED
2357 Coney Island Avenue
Brooklyn, New York 11223
(718) 339-4666**DEFENDANTS' ADDRESSES:**

CITY OF NEW YORK:	100 Church Street, New York, New York 10001
NEW YORK CITY	
POLICE DEPARTMENT:	100 Church Street, New York, New York 10001
	1 Police Plaza, New York, New York
NEW YORK CITY POLICE	
DEPARTMENT DETECTIVE	
JAMES LUONGO:	1 Police Plaza, New York, New York
NEW YORK CITY POLICE	
DEPARTMENT SERGEANT	
AHMED AIMAN:	1 Police Plaza, New York, New York

Index #:
Date Filed:Plaintiff designates Kings
County as the place of trial.Basis of Venue: Place of
occurrence.**SUMMONS**Plaintiff MOHAMED G. AHMED
resides at 240 East 93rd Street,
Apt. #8H, New York, New York
10128.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MOHAMED G. AHMED, Index #:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY POLICE
DEPARTMENT DETECTIVE JAMES LUONGO,
NEW YORK CITY POLICE DEPARTMENT
SERGEANT AHMED AIMAN, NEW YORK CITY
POLICE DEPARTMENT OFFICERS "JOHN DOE"
AND "JANE DOE" #'S 1-10, first and last names
being fictitious and currently unknown,

Defendants.

-----X
Plaintiff MOHAMED AHMED, by his counsel IKHILOV & ASSOCIATES, as
and for a Verified Complaint as against defendants THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE DEPARTMENT
DETECTIVE JAMES LUONGO, NEW YORK CITY POLICE DEPARTMENT
SERGEANT AHMED AIMAN, NEW YORK CITY POLICE DEPARTMENT
OFFICERS "JOHN DOE" AND "JANE DOE" #'S 1-10, first and last names being
fictitious and currently unknown, upon information and belief, hereby alleged as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff MOHAMED G. AHMED ("Ahmed") seek relief for defendants' violations of his rights secured by the Civil Rights Acts of 1866 and 1871, 42 U.S.C. Sections 1983, and of rights secured by the Fourth, Fifth, and Eighth Amendments to the Constitution of the United States of America, by the Equal Protection Clause and the Due Process Clause of the Fourteenth Amendment to the Constitution of the United States of America, and for rights secured under the Constitution and laws of the State of New York. Plaintiff also asserts various pendent causes of action under state law. Plaintiff seeks both compensatory and punitive

damages, an award of costs and attorneys fees, and such other and further relief as this Court deems just and equitable.

FACTS COMMON TO ALL CAUSES OF ACTION

2. Plaintiff was and is a Muslim and a citizen of the United States legal resident of the United States, date of birth December 24, 1984.

3. Plaintiff was and is a resident of the County and State of New York.

4. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("NYC") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

5. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. Upon information and belief, the City owned, owns and is empowered to operate, manage, direct and control a police department.

7. Upon information and belief, the NYPD owned, owns and is empowered to operate, manage, direct and control a police department.

8. Upon information and belief, defendant NEW YORK CITY POLICE DEPARTMENT DETECTIVE JAMES LUONGO, bearing badge/shield number 5875 and/or 22035, ID #947192 (hereinafter "Luongo") was and is at all times relevant herein an officer, agent, servant and employee of NYC.

9. Upon information and belief, Luongo was and is at all times relevant herein an officer, agent, servant and employee of NYPD.

10. Upon information and belief, defendant NEW YORK CITY POLICE DEPARTMENT SERGEANT AHMED AIMAN (hereinafter "Aiman") was and is at all times relevant herein an officer, agent, servant and employee of NYC.

11. Upon information and belief, defendant NEW YORK CITY POLICE DEPARTMENT SERGEANT AHMED AIMAN (hereinafter "Aiman") was and is at all times relevant herein an officer, agent, servant and employee of NYPD.

12. Upon information and belief, defendant NEW YORK CITY POLICE DEPARTMENT OFFICERS "JOHN DOE" AND "JANE DOE" #'S 1-10, first and last names being fictitious and currently unknown (hereinafter "Does") were and are at all times relevant herein, officers, agents, servants and employees of NYC.

13. Upon information and belief, Does were and are at all times relevant herein, officers, agents, servants and employees of NYPD.

14. At all times alleged herein, Luongo was assigned to the Brooklyn Narcotics South Squad Division/Department of the 740 Command of NYC.

15. At all times alleged herein, Loungo was assigned to the Brooklyn Narcotics South Squad Division/Department of the 740 Command of NYPD.

16. At all times alleged herein, Aiman was assigned to the Brooklyn Narcotics South Squad Division/Department of the 740 Command of NYC.

17. At all times alleged herein, Aiman was assigned to the Brooklyn Narcotics South Squad Division/Department of the 740 Command of NYPD.

18. At all times alleged herein, the 61st Police Precinct was and is a police precinct owned, operated, directed, supervised and controlled, by NYC.

19. At all times alleged herein, the 61st Police Precinct was and is a police precinct owned, operated, directed, supervised and controlled, by NYPD.

20. At all times relevant herein, notwithstanding the illegality of the conduct described hereinafter, the individually-named defendants were acting under color of state law, in the course and scope of their duties and functions as agents, servants, employees and officers of NYC and/or NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. The individually-named defendants were acting for, on behalf of, and in furtherance of, the business of NYC and/or NYPD, and at all times relevant herein with the power and authority vested in them as officers, agents and employees of NYC and/or NYPD, and incidental to the lawful pursuit of their duties as officers, employees and agents of NYC and/or NYPD. The individually-named defendants were acting pursuant to the customs, practices, patterns and policies of NYC and/or NYPD. Upon information and belief, the defendants, their agents, servants and employees, owed a special duty owed to the plaintiff, and the all alleged acts of omission and commission on the part of these defendants, its agents, servants and employees, as well as such other acts, conducts and behavior of all defendants herein, constitute a willful, intentional, affirmative and/or negligent pattern, and plan to discriminate against, and to deprive the plaintiff, of his civil rights.

21. All of the individually-named defendant police officers above are sued both individually and in their official capacities as employees of the defendants.

22. That by Order of this Honorable Court, a duly executed late Notice of Claim were timely served upon the defendants.

23. That by Court Order, legally sufficient time has elapsed since service thereof, and the defendants have failed to adjust the claims herein.

24. That this action has been commenced within one (1) year of the date the claim herein accrued.

25. That Ahmed has complied with all conditions precedent to the commencement of the subject action.

26. That at all times hereinafter alleged, East 18th Street is a public thoroughfare located in the County of Kings, in the State of New York.

27. That on and around the early afternoon of March 13, 2015, the plaintiff was lawfully operating a motor vehicle on East 18th Street, at or near 2071 East 18th Street, Brooklyn, New York.

28. That on or around the early afternoon of March 13, 2015, Luongo and Aiman were occupants and operating an unmarked Toyota Camry motor vehicle, within their capacity as employees, agents, servants and officers of NYC and/or NYPD.

29. That on or around the early afternoon of March 13, 2015, Luongo and Aiman were occupants and operating an unmarked Toyota Camry motor vehicle, within their scope of their duties and responsibilities as law enforcement officers for NYC and/or NYPD.

30. That on or around the early afternoon of March 13, 2015, plaintiff was lawfully operating a motor vehicle on East 18th Street, at or near 2071 East 18th Street, Brooklyn, New York, in front and ahead of the aforesaid motor vehicle operated by Luongo and Aiman.

31. That without probable cause, legal justification or warning, Luongo and Aiman operated their motor vehicle so as to not only suddenly and without warning accelerate past plaintiff's motor vehicle, but to then immediately cut-off, stop and block plaintiff's motor vehicle from continuing to be driven.

32. That Luongo then exited defendants' motor vehicle, approached plaintiff's motor vehicle, and without probable cause or legal basis ordered plaintiff to exit from his motor vehicle.

33. That after plaintiff inquired as to the legal basis for defendants' wrongful and illegal actions, conduct and behavior, attempting to assert and protect his Federally-protected civil rights as a United States citizen, without provocation, warning, justification and/or probable cause, Luongo physically, excessively and forcibly removed plaintiff from his motor vehicle.

34. That at no time prior to forcibly ejecting plaintiff from his motor vehicle did either Luongo or Aiman either read to plaintiff his Miranda rights, charge plaintiff with a crime, or otherwise indicate any legal basis or probable cause for engaging in such actions, conduct or behavior.

35. That in the course of plaintiff's forcible ejection from his motor vehicle, Loungo unlawfully and without probable cause, consent or legal justification, unnecessarily, unreasonably, excessively and forcibly dragged, accosted, assaulted, battered, pushed, threw, propelled, touched, grabbed, pulled, assaulted and battered, the plaintiff.

36. That immediately upon plaintiff's wrongful and forcible ejection from his motor vehicle, Luongo and Aiman conducted an illegal and unwarranted search and seizure of the plaintiff, handcuffed and placed plaintiff under arrest, falsely charging with two (2) counts of criminal possession of a controlled substance in the 7th degree.

37. That Luongo and Aiman then called for assistance, whereupon an unmarked police van with a rear steel cage, operated by defendant Does in their capacity as law enforcement officers for NYC and/or NYPD, appeared thereat.

38. That the individually-named Respondents then forced plaintiff, while handcuffed, into this van.

39. That instead of reasonably transporting plaintiff to a police station for timely processing, plaintiff remained handcuffed inside the cage to this van, which was intentionally, illegally and without legal justification or reasonable cause, driven excessively and aimlessly, despite plaintiff's repeated protestations and complaints of civil rights violations, for the next approximate four (4) hours.

40. That after approximately four (4) hours, Does finally transported plaintiff to the defendants' 61st Police Precinct, where plaintiff remained incarcerated for approximately another one (1) hour, until released with a Court date, approximately five (5) hours after the happening of this incident.

41. That defendants intentionally caused, assisted and bolstered, a prolonged illegal and malicious criminal prosecution against the plaintiff, including but not limited to, providing false, misleading and/or contradictory statements and evidence, and otherwise delayed the timely prosecution of the underlying criminal action against the plaintiff.

42. That all criminal charges were dismissed in total and on the merits by the Criminal Court of Kings County, on or about January 14, 2016.

43. As a proximate result thereof, the plaintiff was caused to suffer serious, severe and potentially permanent personal, physical, mental, emotional injuries, non-economic and economic damages, stress, humiliation, emotional and psychological damages, mental pain and suffering, embarrassment, humiliation, and injury to his dignity.

CONSTITUTIONAL AND FEDERAL STATUTORY VIOLATIONS

FIRST CLAIM

(Violations of Constitutional Rights and violations of 42 U.S.C. Section 1983 by Defendants)

44. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "43" of the Complaint as if fully set forth herein.

45. The conduct of the individually-named defendants, acting under color of law and in concert with one another, in making an illegal and unauthorized stop, detention, search, assault and battery, harassment, use of excessive and unreasonable force, unlawful and unreasonable detention, false arrest and imprisonment, and malicious prosecution of the plaintiff, was done intentionally, maliciously, wantonly, and/or with a reckless disregard for the natural and probable consequences of their acts, and was done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America.

46. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

47. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

SECOND CLAIM

(Violations of Constitutional Rights and 42 U.S.C. Sections 1983 for the failure of defendants NYC and/or NYPD to Hire, Train, and Supervise Individually-Named Defendants)

48. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "47" of the Complaint as if fully set forth herein.

49. NYC, and/or NYPD, its agents, servants and employees, acting under color of law, in a regular, pervasive, intentional, reckless and/or grossly negligent pattern, plan and manner, and with deliberate indifference towards plaintiff and/or other similarly-

situated citizens/residents, failed to reasonably and properly hire, supervise, train and discipline police officers under their jurisdiction, including the individually-named defendants herein, with respect to unlawful and brutal assaults, stop, searches and frisks, arrests and imprisonment, and to otherwise deprive residents/citizens of their federal constitutional and statutory rights, privileges and immunities, and rights under state law.

50. Such inadequate training and inadequate supervision were the direct causes of and the moving forces behind the aforesaid events, as guaranteed under 42 U.S.C. Sections 1983 and by the Fourth, Fifth, Eighth, Thirteenth and Fourteenth Amendments to the Constitution of the United States of America.

51. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

52. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

THIRD CLAIM

(Violations of Constitutional Rights and Violations of 42 U.S.C. Sections 1983 by NYC and/or NYPD for its Failure to Prevent Misconduct and to Discipline Offending Officers)

53. Plaintiff incorporates by reference the allegations set forth in Paragraphs "1" through "52" of the Complaint as if fully set forth herein.

54. NYC, and/or NYPD, its agents, servants and employees, acting under color of law, in a careless, reckless and negligent manner and with deliberate indifference towards plaintiff and other citizens/residents, had actual or imputed knowledge through their supervisory officials of a past pattern of such police misconduct and brutality inflicted on various citizens/residents, and failed to exercise reasonable care in investigating such claims in order to prevent such misconduct.

55. NYC, and/or NYPD, its agents, servants and employees, acting under color of law, in a grossly negligent manner and with deliberate indifference towards plaintiff and/or other similarly-situated citizens/residents, had actual or imputed knowledge, through their supervisory officials, of a past pattern of police misconduct and brutality inflicted on plaintiff by the individually-named defendants, and/or the police officers of its Brooklyn Narcotics South Squad Division/Department and/or its 61st Police Precinct, and failed to prevent the misconduct and brutality inflicted on plaintiff.

56. By failing to act to prevent such misconduct and/or to discipline offending officers, NYC and/or NYPD approved and encouraged such conduct towards the plaintiff and others similarly situated, and thus promulgated and/or carried out an official policy or

custom permitting such behavior in violation of plaintiff's rights as guaranteed under 42 U.S.C. Sections 1983 and by the Fourth, Fifth, Eighth, Thirteenth and Fourteenth Amendments to the Constitution of the United States of America.

57. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

58. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

NEW YORK STATE TORT LAW CLAIMS ON BEHALF OF PLAINTIFF AGAINST
THE DEFENDANTS

FOURTH CLAIM
(Negligent Use of Force)

59. Plaintiff incorporates by reference the allegations set forth in Paragraphs "1" through "58" of the Complaint as if fully set forth herein.

60. The individually-named defendants were without reason, justification or authority in assaulting, committing battery upon, stopping, searching, handcuffing, imprisoning, placing under custody and arresting the plaintiff, and these individually-named defendants had a duty to exercise reasonable care and a duty to refrain from using illegal, unjustified, unreasonable and excessive force.

61. The aforesaid grossly negligent, wanton, and reckless conduct of the individually-named defendants constituted a negligent use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

62. NYC and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

63. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

64. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

FIFTH CLAIM

(Negligent Hiring, Supervision, and Training of Police Officers)

65. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “64” of the Complaint as if fully set forth herein.

66. At all times relevant herein, notwithstanding the illegality of the conduct described heretofore, the individually-named defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYC and/or NYPD, and/or otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

67. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of NYC and/or NYPD, with the power and authority vested in them as officers, agents and employees of NYC’s and/or NYPD’s police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

68. At all relevant times herein, the individually-named defendants were acting pursuant to the customs and policies of City’s police department.

69. NYC and/or NYPD are obligated by law to maintain a police department, and are ultimately responsible and assume the risk incidental to the maintenance of a police force.

70. As part of their duties in maintaining a police force and in employing police officers, NYC and/or NYPD must exercise reasonable care in hiring, training, and supervising police officers, and in investigating claims of police brutality.

71. NYC, and/or NYPD, its agents, servants and employees, in a grossly negligent manner and with deliberate indifference to the plaintiff and/or citizens/residents of the aforesaid community, failed to exercise reasonable care in hiring, training, and supervising these individual-named defendants who committed the aforesaid tortious acts against the plaintiff, and who otherwise violated the plaintiff’s constitutional and statutory rights, privileges, and immunities.

72. NYC, and/or NYPD, its agents, servants and employees, acting under color of law, in a grossly negligent manner and with deliberate indifference towards the plaintiff and/or other citizens/residents, had actual or imputed knowledge through their supervisory officials of a past pattern of police misconduct and brutality inflicted on various citizens in general and on the plaintiff in particular, and failed to exercise reasonable care in investigating claims of police brutality in order to prevent such misconduct.

73. Such inadequate hiring, inadequate training, inadequate supervision, and failure to investigate claims of police brutality were the direct causes of and the moving forces behind the aforesaid events, resulting in severe physical and emotional injuries to plaintiff, in violation of such plaintiff's statutory and constitutional rights and rights, privileges, and immunities under state and federal law.

74. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

75. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

SIXTH CLAIM

(False Arrest and False Imprisonment)

76. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "75" of the Complaint as if fully set forth herein.

77. The individually-named defendants intentionally, wrongfully, illegally and without probable cause, or a legal basis or justification, arrested the plaintiff.

78. The individually-named defendants, NYC and/or NYPD intentionally, wrongfully, illegally and for an excessive period of time, and without probable cause, placed the plaintiff under custody, including but not limited to, at the scene of the underlying occurrence, in the police van, and at defendants' 61st Police Precinct.

79. The individually-named defendants intended to arrest and to confine the plaintiff.

80. The plaintiff was conscious of both his aforesaid arrest and confinement.

81. The plaintiff did not consent to either the aforesaid arrest or confinement.

82. The aforesaid arrest and confinement was not privileged.

83. The aforesaid actions, conduct and behavior of the defendants constitute the tort of false arrest.

84. The aforesaid actions, conduct and behavior of the defendants constitute the tort of false imprisonment.

85. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

86. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of NYC and/or NYPD, with the power and authority vested in them as officers, agents and employees of NYC's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

87. NYC and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

88. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

89. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

SEVENTH CLAIM
(Malicious Prosecution)

90. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "89" of the Complaint as if fully set forth herein.

91. The defendants caused to be initiated against the plaintiff, a criminal judicial proceeding.

92. The aforesaid criminal proceeding was initiated against the plaintiff by the defendants without probable cause.

93. The aforesaid criminal proceeding was initiated against the plaintiff by the defendants with malice.

93. The defendants, their agents, servants and employees, not only unreasonably delayed and extended the timely prosecution of the aforesaid criminal proceeding against the plaintiff, but therein submitted false and misleading statements and evidence against the plaintiff.

94. The aforesaid criminal proceeding initiated against the plaintiff by the defendants was terminated in plaintiff's favor.

95. The aforesaid actions, conduct and behavior of the defendants constitute the tort of malicious prosecution.

96. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of its authority as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

97. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of NYC and/or NYPD, with the power and authority vested in them as officers, agents and employees of NYC's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

98. NYC and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

99. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

100. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

EIGHTH CLAIM

(Assault)

101. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "100" of the Complaint as if fully set forth herein.

102. The individually-named defendants intentionally, wrongfully, illegally and without probable cause, or a legal basis or justification, placed the plaintiff in apprehension of imminent harmful and/or offensive contact.

103. The plaintiff reasonably believed that the individually-named defendants were capable and intended to imminently harm and/or offensively come in contact with him.

104. The aforesaid actions, conduct and behavior of the individually-named defendants constitute the tort of assault.

105. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of force as against the plaintiff,

and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

106. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of NYC and/or NYPD, with the power and authority vested in them as officers, agents and employees of NYC's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

107. NYC and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

108. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

109. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

NINTH CLAIM
(Battery)

110. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "109" of the Complaint as if fully set forth herein.

111. The individually-named defendants intentionally, wrongfully, illegally and without probable cause, or a legal basis or justification, made bodily contact with the plaintiff.

112. The aforesaid bodily contact was harmful and/or offensive in nature.

113. The aforesaid bodily contact was made with intent.

1104. The aforesaid actions, conduct and behavior of the individually-named defendants constitute the tort of battery.

115. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

116. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of NYC and/or NYPD, with the

power and authority vested in them as officers, agents and employees of NYC's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

117. NYC and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

118. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

119. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

TENTH CLAIM

(Intentional Infliction of Emotional Distress)

120. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "119" of the Complaint as if fully set forth herein.

121. The aforesaid actions, conduct and behavior of the defendants, in its assault, battery, false arrest, false imprisonment, illegal search and seizure, malicious prosecution and the violation of the civil rights, of the plaintiff, was extreme and outrageous, as measured by the reasonable bounds of decency as tolerated by society.

122. The aforesaid actions, conduct and behavior of the defendants, in its assault, battery, false arrest, false imprisonment, ma illegal search and seizure, malicious prosecution and the violation of the civil rights, of the plaintiff, was intentional, wanton and/or reckless, with the purpose to cause the plaintiff to incur emotional distress.

123. The aforesaid actions, conduct and behavior of the defendants, in its assault, battery, false arrest, false imprisonment, illegal search and seizure, malicious prosecution and the violation of the civil rights, of the plaintiff, resulted in extreme physical, mental and emotional injury and distress.

124. The aforesaid actions, conduct and behavior of the individually-named defendants constitute the tort of intentional infliction of emotional distress.

125. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

126. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of NYC and/or NYPD, with the power and authority vested in them as officers, agents and employees of NYC's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

127. NYC and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

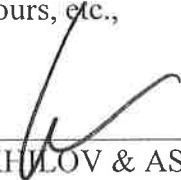
128. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

129. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

WHEREFORE, plaintiff demands an award of monetary damages as against the defendants in accordance with the aforesaid causes of action, including a monetary award of punitive damages, attorneys' fees, costs, disbursements and interests, along with such other, further and different relief as to this Honorable Court may seem just and proper.

Dated: Brooklyn, New York
March 9, 2016

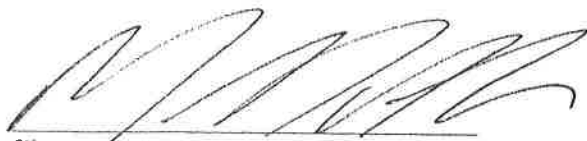
Yours, etc.,



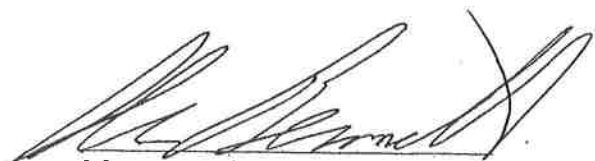
IKHLOV & ASSOCIATES
Attorneys for Plaintiff
MOHAMED G. AHMED
2357 Coney Island Avenue
Brooklyn, New York 11223
(718) 336-4999

STATE OF NEW YORK COUNTY OF KINGS ss.:
VERIFICATION

I, MOHAMED G. AHMED, being duly sworn deposes and says that: I am the Plaintiff in the within action; I have read the foregoing and I know the contents thereof: the contents of the foregoing are true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.


Signature

Sworn to before me on the 9th day
of March, 2002 2016


Notary Public
My commission expires on 10/27/17

ALAN BENNETT
Notary Public, State of New York
No. 02F0037239
Qualified in Queens County
Commission Expires 10/27/2009
2017